

Platform: CocosOS (Independent Operating System)

Author Type: Hobbyist / OSDev Community Developer

Document Scope: Regulatory Disadvantages and Structural Flaws

Date: May 2026

1) Introduction and Core Argument

1.1) The Reality of Independent Software Development

AB 1043 doesn't specify whether Open Source Operating Systems are included, so the law lumps everyone together (meaning everyone is covered by the law). This means there are systems created as a hobby (like CocosOS in this case) and hobby OSs (also known as indie OSs and included in the OSDev community), and the vast majority don't have the time or resources to manage a server.

By imposing the same compliance standards on a hobbyist project as they do on multibillion-dollar corporations, AB 1043 creates an unsustainable regulatory barrier that stifles innovation. For indie operating systems like CocosOS, the risk of non-compliance is not just a financial penalty—it is the literal death of the project. A single developer cannot absorb the legal liability or the threat of statutory fines imposed by the California Attorney General. Consequently, this law inadvertently grants an anti-competitive monopoly to big tech monopolies, as they are the only entities capable of affording the legal and compliance teams necessary to navigate these vague mandates

1.2 The Misconception of "The Operating System" as a CorporateEntity

The fundamental flaw of AB 1043 is its archaic definition of what an operating system provider is. The authors of the bill drafted the legislation under the assumption that every operating system is backed by a global corporation with an established cloud network. It completely ignores the decentralized nature of the OSDev community.

Projects like **CocosOS** are built from scratch by individual programmers to study hardware architecture, write custom kernels, and contribute to computer science education. Forcing an independent developer to operate as a corporate data controller is a conceptual failure that demonstrates a lack of basic technical understanding by the regulators.

1.3 The Financial Impossibility of Server-Side Compliance

As stated above, a hobby project does not have the infrastructure to manage a server. In the modern software ecosystem, deploying and maintaining secure servers requires constant financial investments in cloud hosting (such as AWS, Azure, or Google Cloud), database management, and active cybersecurity mitigation.

Because **CocosOS** operates entirely on zero budget as a non-commercial educational project, demanding that the system maintain server-side architectures for age assurance signals is a financial impossibility. The law demands enterprise solutions from individuals who are simply writing code for educational fulfillment.

2. The Threat of Statutory Fines on Indie Developers

The financial enforcement mechanisms of the Digital Age Assurance Act are designed to penalize massive corporations, yet they apply universally. When the California Attorney General issues a sanction for failing to implement an age assurance signal API, the monetary penalties can reach thousands of dollars per violation.

For an enterprise, this is a minor operational cost. For an independent developer hosting **CocosOS** as an open-source hobby, a single legal notice means immediate bankruptcy. The law completely overlooks the fact that indie operating systems do not generate revenue, accept corporate sponsorships, or monetize user data.
